THE SOURCE OF HOPE · ALL PROGRAMS, EVENTS, AND PARTNER LOCATIONS

General Volunteer Agreement, Assumption of Risk and Release of Liability

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PLEASE READ CAREFULLY. THIS IS A RELEASE OF LIABILITY THAT AFFECTS YOUR LEGAL RIGHTS.

1. Agreement to Volunteer. I, _____ *(print full legal name)*, voluntarily agree to volunteer with The Source of Hope ("TSOH") in its meals, services, programs, and activities. This Agreement applies to every TSOH activity I take part in, including events held at partner locations, from the date I sign it until I give TSOH written notice that I am ending my volunteer service.
I am participating as a: ☐ Volunteer ☐ Mentor ☐ Intern ☐ School or service hours ☐ Other: _____

2. Released Parties and Scope. The "Released Parties" are TSOH and its founders, officers, directors, board and advisory board members, employees, volunteers, mentors, interns, students, agents, representatives, contractors, subcontractors, consultants, sponsors, donors, food providers, vendors, program partners, community partners, host organizations, host facilities, property owners, landlords, affiliates, and collaborating organizations; the officers, directors, employees, volunteers, and agents of each of them, including participating partner personnel; and their successors and assigns. This Agreement covers activities run directly by TSOH and activities held with, or at the facilities of, its affiliates, community partners, sponsors, program partners, and host organizations, now or in the future.

3. Volunteer Status. I am a volunteer, not an employee of any Released Party, including if I serve as an unpaid intern or mentor or earn school or community service hours. I will not be paid for my time and am not entitled to wages or benefits, including unemployment or employment insurance benefits. I choose the dates and times I volunteer, and TSOH may decline, reschedule, or end my participation at any time.

4. Activities and Assumption of Risk. Activities may include tutoring, mentoring, and workforce training support; wellness and health events; food collection, sorting, packing, and distribution; outdoor and nature-based activities; community events, fundraisers, and outreach; office work; event setup and breakdown; and loading, unloading, and transporting supplies, including lifting and carrying items up to 40 pounds. Risks include, but are not limited to, strains and back injuries; slips, trips, and falls; cuts and burns; heat, cold, and weather; uneven terrain, water, insects, and animals during outdoor activities; motor vehicle accidents while traveling to, from, or between activity sites; exposure to contagious illness and food allergens; conditions at facilities TSOH does not own or control; the actions of others; and loss of or damage to personal property. **I KNOWINGLY AND VOLUNTARILY ASSUME ALL OF THESE RISKS, KNOWN AND UNKNOWN, INCLUDING RISKS ARISING FROM THE NEGLIGENCE OF THE RELEASED PARTIES. Initials:** _____

5. Food, Health, and Safety. I am physically able to take part and will tell a team member about any medical condition, food allergy, dietary restriction, or limitation that may affect my safety. Food may be home cooked, donated, or commercially prepared and may contain milk, eggs, wheat, soy, peanuts, tree nuts, fish, shellfish, sesame, or other allergens. TSOH and its partners cannot guarantee that food is free of allergens or prepared in a kitchen free of allergens. I will ask about ingredients and will not eat anything I am unsure is safe for me. I will follow all safety, food storage, reheating, facility, and activity instructions of TSOH, its partners, and host facility staff; will report any food concern, illness, injury, or unsafe condition to a team member immediately; and may decline any task I am not comfortable doing. Roles that involve working with minors may require a background check and additional training, which will be handled separately.

6. RELEASE OF LIABILITY AND AGREEMENT NOT TO SUE. IN EXCHANGE FOR BEING ALLOWED TO VOLUNTEER, I, ON BEHALF OF MYSELF AND MY HEIRS, ASSIGNS, GUARDIANS, AND LEGAL REPRESENTATIVES, RELEASE, DISCHARGE, AND AGREE NOT TO SUE THE RELEASED PARTIES FOR ANY AND ALL CLAIMS, KNOWN OR UNKNOWN, FOR PERSONAL INJURY, ILLNESS, DEATH, OR PROPERTY DAMAGE ARISING OUT OF MY PARTICIPATION IN ANY TSOH ACTIVITY, MY PRESENCE AT ANY ACTIVITY SITE, OR TRANSPORTATION PROVIDED OR ARRANGED BY ANY RELEASED PARTY, INCLUDING CLAIMS ARISING FROM THE NEGLIGENCE OF ANY RELEASED PARTY, WHETHER SOLE, JOINT, CONCURRENT, ACTIVE, OR PASSIVE. THIS RELEASE DOES NOT APPLY TO GROSS NEGLIGENCE, INTENTIONAL MISCONDUCT, OR ANY CLAIM THAT CANNOT BE RELEASED UNDER TEXAS LAW. I will indemnify and hold harmless the Released Parties from claims by others arising from my own negligent or intentional acts. **Initials:** _____

7. Medical Treatment. I AM NOT COVERED BY ANY WORKERS' COMPENSATION PROGRAM OF TSOH OR ANY OTHER RELEASED PARTY, and I am responsible for my own medical costs. If I am injured or ill and unable to consent, I authorize TSOH, its partners, and their staff to seek emergency medical treatment for me at my expense. **In an emergency, call 911 first,** then notify TSOH at 469-969-0244 or info@thesourceofhope.org.

8. Property, Confidentiality, and Photos. Tools, materials, and supplies remain the property of TSOH or its partners, and I will return them. I will treat the people TSOH serves with dignity, keep private information I learn about students, families, clinic participants, and community members confidential, and will not photograph them or share their personal information without their permission and TSOH's approval. I authorize TSOH and its affiliates, partners, and sponsors to photograph and record me and to use my name, image, likeness, and voice, without compensation, for educational, promotional, fundraising, website, social media, print, and other nonprofit purposes, until I withdraw this permission in writing (future uses only). Opting out will not affect my ability to volunteer. ☐ **I do NOT give permission** to use my photo, video, or voice.

9. General Terms. This Agreement is governed by Texas law and does not limit any immunity or other protection available to the Released Parties under applicable law. If any part is found unenforceable, the rest remains in effect.

I HAVE CAREFULLY READ THIS AGREEMENT AND UNDERSTAND THAT IT IS A RELEASE OF LIABILITY AND THAT I AM GIVING UP CERTAIN LEGAL RIGHTS, INCLUDING THE RIGHT TO SUE FOR NEGLIGENCE. I AM 18 OR OLDER, OR MY PARENT OR GUARDIAN HAS SIGNED BELOW. I SIGN THIS AGREEMENT VOLUNTARILY AND OF MY OWN FREE WILL.

_____ _____ _____
Volunteer signature | Date | Date of birth

_____ _____ _____
Printed full name | Phone | Email

_____ _____ _____
Emergency contact name | Relationship | Emergency contact phone

Parent or guardian (required if volunteer is under 18): I am the parent or legal guardian of the minor named above. I have read this Agreement, consent to my child's participation, and agree to its terms for myself and, to the fullest extent permitted by law, for my child. I will discuss my child's food allergies, safety concerns, and photography preferences with a team member.

_____ _____ _____
Parent or guardian signature | Printed name | Date

FOR TSOH USE: Received by _____ Date _____